

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

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ARTHUR BASTIAN,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER
DUNCAN (f/n/u)(Tax Reg. # 946961) and NYPD
OFFICERS JOHN and JANE DOE #'s 1-10 and other
Unidentified members of the New York City Police
Department (names and numbers are unknown at present),

Defendants.
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SUMMONS

Basis of Venue:
Place of Incident

Plaintiff Designates
Bronx County
as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 26, 2021

Respectfully submitted,

/s/ Sydney Ohagan

Sydney O'Hagan, Esq.

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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD OFFICER DUNCAN (f/n/u) (Tax Reg. # 946961), 42nd Precinct, Bronx, NY

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
ARTHUR BASTIAN,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER
DUNCAN (f/n/u)(Tax Reg. # 946961) and NYPD
OFFICERS JOHN and JANE DOE #'s 1-10 and other
Unidentified members of the New York City Police
Department (names and numbers are unknown at present),

Defendants.
-----X

Plaintiff **Arthur Bastian**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants subjected him to, among other things, negligence, gross negligence, intentional and negligent infliction of emotional distress and deliberate indifference. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Arthur Bastian is a resident of the State of New York, Bronx County.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER DUNCAN (f/n/u), assigned Tax Reg. # 946961, employed with the 42nd Precinct in the Bronx, NY, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD OFFICER DUNCAN (Shield # Tax Reg. # 946961) is being sued in his individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-10 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-10 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department

and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of the Plaintiff on July 31, 2020.

STATEMENT OF FACTS

15. On August 21, 2019, at approximately 12:00 p.m. at the 42nd precinct, Bronx, New York, several police officers from the 42nd precinct, and other unknown police commands, including, upon information and belief, defendant NYPD Officer Duncan, P.O. John and Jane Does #1-10, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff Bastian.
16. On August 21, 2019 at approximately 12:00 p.m., Plaintiff was alone inside a holding cell at the 42nd precinct when another inmate entered the processing area of the 42nd precinct. Plaintiff Bastian had no prior interactions with this individual, however, he overheard this individual tell defendant officers DUNCAN and/or POLICE OFFCERS "JOHN and JANE DOE" #'s 1-10, that he wanted a cell by himself, and that if he didn't get a cell alone, "there would be trouble." This

individual also informed defendant officers that he was part of a gang by the name of “Sex Money Murder” (“SMM”) from the Washington Projects.

17. Notwithstanding the defendant officers DUNCAN and/or POLICE OFFCERS “JOHN and JANE DOE” #’s 1-10 knowledge of the potential harm that could be caused to Plaintiff Bastian, defendant officers placed this individual, who was not in handcuffs or restrained in any manner, in a jail cell with Plaintiff Bastian.
18. As a result of defendant officers’ reckless disregard of Plaintiff’s safety, Plaintiff was assaulted by this inmate immediately after he entered the cell where Plaintiff Bastian was located. This individual stepped behind Plaintiff and began assaulting him by punching him in his face and shoulders. Plaintiff Bastian tried to protect himself from the assault, but sustained significant injuries. He never retaliated.
19. As a result of the vicious assault, Plaintiff Bastian suffered substantial pain and physical injuries to his face, neck, head, and shoulder. He was transferred to Lincoln Medical Center where x-rays and CAT scans to his neck and face were performed. He was treated for contusions to the left side of his face and the left side of his forehead. He was given a pain shot and a prescription for pain medication.
20. The defendant officers DUNCAN and/or POLICE OFFCERS “JOHN and JANE DOE” #’s 1-10 failure to place Plaintiff Duncan or his aggressor in a separate room or cell, despite the warning from the aggressor that he would cause harm if he was placed in a shared cell, constitute a failure to protect Plaintiff Bastian under state and federal law.
21. Defendant officers DUNCAN and/or POLICE OFFCERS “JOHN and JANE DOE” #’s 1-10 falsely claimed on the individual’s arrest report that Plaintiff Bastian was uncooperative and

refused medical treatment at the precinct, when in truth, he was transferred to Lincoln Medical Center from the precinct because of the substantial pain and injuries he was suffering.

22. Plaintiff was subsequently transferred to Bronx Central Booking, where he was arraigned on charge stemming from a different incident. The individual who assaulted him was arrested and charged with assault in the third degree under Penal Law 120.00.
23. As a result of the foregoing, Plaintiff suffered loss of liberty due to his extended incarceration while receiving medical treatment while in NYPD custody. In addition, he suffered, inter alia, , physical injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FIRST CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

24. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 23 with the same force and effect as if more fully set forth at length herein.
25. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties;
26. The aforementioned acts of negligent hire, retention, training, and supervision by the City of New York and the New York City Police Department include, but are not limited to failing to take reasonable control/and or discipline officers who lie, fabricate evidence, engage in illegal acts toward other police officers or civilians, and/or commit perjury to cover up police misconduct and/or inflate arrest statistics.

SECOND CAUSE OF ACTION**NEGLIGENCE**

27. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 26 with the same force and effect as if more fully set forth at length herein.
28. Defendants owed a duty of care to Plaintiff because he was under their custody and control.
29. Defendant officers DUNCAN and/or POLICE OFFCERS "JOHN and JANE DOE" #'s 1-10 breached that duty of care by allowing a professed dangerous individual into a jail cell with the Plaintiff who was alone and unprotected.
30. As a direct and proximate cause of this unlawful conduct, Plaintiff sustained injury to his head, neck, and shoulder.
31. All of the foregoing occurred without any fault by plaintiff.
32. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION**FAILURE TO INTERVENE**

33. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.
34. Defendant officers DUNCAN and/or POLICE OFFCERS "JOHN and JANE DOE" #'s 1-10 had an affirmative duty to intervene to intercede when plaintiff's constitutional rights were being violated in their presence.
35. Specifically, defendants DUNCAN and/or POLICE OFFCERS "JOHN and JANE DOE" #'s 1-10 had an affirmative duty to take reasonable measures to prevent Plaintiff from being assaulted by a fellow inmate.

36. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
37. As a result of the foregoing, plaintiff was subjected to an unlawful detention and physical and emotional injury to his person over the course of his detainment.
38. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
39. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.
41. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
42. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries, including injury to his right shoulder and hand. He suffered extreme emotional injury including anxiety, stress, humiliation, and fear.

43. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

44. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
45. All of the aforementioned acts of defendants officers DUNCAN and/or POLICE OFFCERS “JOHN and JANE DOE” #'s 1-10, their agents, servants, and employees, were carried out under the color of state law.
46. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
47. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
48. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
49. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF**DELIBERATE INDIFFERENCE TO PLAINTIFF'S WELFARE AND SAFETY UNDER****42 USC § 1983**

50. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
51. Defendants DUNCAN and/or POLICE OFFICERS "JOHN and JANE DOE" #'s 1-10 owed a duty of care to their detainee Plaintiff Bastian to train and supervise their employees, and to enact and enforce proper policies, procedures and practices to prevent harm to Plaintiff Bastian under the Fourteenth Amendment.
52. Defendants New York City and officers DUNCAN and/or POLICE OFFICERS "JOHN and JANE DOE" #'s 1-10 were deliberately indifferent to the substantial risk that the City's policies, practices, procedures, and training were inadequate to prevent violation of Plaintiff's rights under the Fourteenth Amendment.
53. The defendants' failure to enact and enforce proper policies, practices, and procedures to prevent harm to arrestees in their custody was the direct and proximate cause of the violation of Plaintiff's rights and the physical injuries he suffered while in custody at the 42nd precinct.
54. Defendant officers deprived Plaintiff of his rights under 42 USC § 1983, and to be free of intentional, reckless and/or deliberate indifference to Plaintiff's safety.
55. The intentional, reckless, and/or deliberate indifference to the duties owed to Plaintiff were the direct and proximate cause of harm to Plaintiff, including injuries to his shoulder, head, and neck.

THIRD CLAIM FOR RELIEF**FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983**

56. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

57. Defendant officers DUNCAN and/or POLICE OFFICERS “JOHN and JANE DOE” #'s 1-10 had an affirmative duty to intercede when plaintiff's constitutional rights were being violated in defendants' presence by the misrepresentation and falsification of evidence regarding the circumstances surrounding plaintiff's arrest throughout all phases of the criminal proceedings.
58. Defendant officers DUNCAN and/or POLICE OFFICERS “JOHN and JANE DOE” #'s 1-10 further violated plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
59. As a result of the defendants' failure to intercede when plaintiff's constitutional rights were being violated in defendants' presence, plaintiff sustained, *inter alia*, emotional injuries, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was assaulted by an inmate.

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

60. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
61. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
62. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Department of Corrections include, but are not limited to, the following unconstitutional practices;
- i. Failing to prevent or aid in preventing arrestees from being the victims of brutal acts of physical violence perpetrated by fellow inmates;

- ii. Deliberate indifference to training officers in how to ensure inmate safety that would endanger the health or safety to fellow inmates;
63. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiff.
64. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.
65. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.
66. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.
67. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate corrections officers, and were directly responsible for the violation of the plaintiff's constitutional rights.
 1. The acts complained of deprived the plaintiff of his right:
 - a) To be free from cruel and unusual punishments;
 - b) To receive timely and adequate medical care;
 - c) To be provided with appropriate safety while in custody;
 - d) Not to have summary punishment imposed upon him; and
 - e) To receive equal protection under the law.

WHEREFORE, ARTHUR BASTIAN, plaintiffs, demand a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
May 26, 2021

Respectfully submitted:

By: /s/ *Sydney Ohagan*
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New York, New York 10005
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

NYPD OFFICER DUNCAN (f/n/u) (Tax Reg. # 946961), 42nd Precinct, Bronx, NY

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
May 26, 2021

/s/ Sydney Ohagan
Sydney O'Hagan, Esq.